

COUNTRY OVERVIEWS



Following Liberia's credible elections in October 2005 there is real cause for optimism for the hundreds of thousands of people displaced by 14 years of civil war. While the new government of President Ellen Johnson-Sirleaf took the first steps towards economic and security sector reform, IDPs and refugees continued to return home in large numbers. The assisted return of some 314,000 registered IDPs was expected to be completed by April 2006 and IDP camps officially closed. The presence of 15,000 UNMIL peacekeepers contributed towards the restoration of peace across the country. Yet huge challenges clearly remain. Years of conflict, compounded by acute mismanagement and poor governance, have devastated Liberia's infrastructure and economy, leaving it one of the poorest countries in the world. IDPs have returned to areas without basic social services or livelihood opportunities, in some cases causing them to drift back to camps or urban areas. Unknown numbers of unregistered IDPs continue to occupy public buildings in the capital Monrovia in often grim conditions. Protection concerns as well as urgent humanitarian needs still exist in remaining camps as well as areas of return. Crucially, the reintegration and rehabilitation of ex-combatants is incomplete, largely due to funding constraints, posing a risk to sustained peace and stability. The volatile political situation in the region, particularly in neighbouring Côte d'Ivoire, also has the potential to reverse the progress made.

Protection concerns

While the Liberian conflict was characterised from the outset by horrific human rights abuses against civilians by all parties to the conflict, IDPs have consistently been identified as one of the most vulnerable groups. In the return phase there have been major concerns about abuses against both returning IDPs and those still in camps. This is largely as a result of disgruntled ex-combatants who have not benefited from reintegration assistance and lack employment opportunities. Throughout 2005, Human Rights Watch documented recently disarmed Liberian combatants – including children – being recruited to fight on behalf of the government in Côte d'Ivoire, perpetuating the regional cycle of conflict and displacement.

Returnee and displaced women and girls have remained particularly at risk of rape and other forms of sexual violence by armed gangs and former militia members. Rape was so pervasive throughout the Liberian conflict that the UN described it as weapon of war. In 2005 reports of gender-based violence continued from all parts of the country, and girls as young as 12 were known to have turned to prostitution as a survival mechanism. However, in December 2005 new legislation made rape illegal for the first time in Liberia, with rapists facing possible life imprisonment depending on the gravity of the offence. This came soon after the establishment of a Women and Children's Protection Unit within the Liberian National Police, also seen as a positive contribution towards the protection of women and children from sexual abuse and exploitation.

In the run-up to the October 2005 elections, human rights organisations warned that while some progress had been made during the transitional period, Liberia's prospects for peace continued to face numerous threats, including an incomplete demobilisation programme, the widespread availability of small arms, a culture of impunity, endemic corruption and mismanagement, a weak judicial system, ethnic discrimination and crushing poverty. Rights organisations called on the new government to urgently address these issues, particularly judicial reform.

Chronic humanitarian crisis

The repeated cycle of conflict and displacement in Liberia since 1989 has held the country in the grip of a humanitarian crisis that has been largely hidden from the outside world. As humanitarian access gradually improved with the deployment of UNMIL troops from late 2003, the scale of the crisis became apparent.

While the UN reported in late 2005 that around 80 per cent of all IDPs who had returned may have actually stayed in their areas of return, due in part to the increasing absorption capacity of communities, there is still clearly a serious lack of basic services and infrastructure in key areas of return – such as north-western Lofa county which was once home to many of Liberia's IDPs and which was almost entirely devastated in the war. Almost two thirds of communities in Liberia do not have adequate shelter. The health care system throughout the country remains in emergency phase, with agencies and NGOs implementing more than 90 per cent of health service delivery as of early 2006. More than 75 per cent of the population has no access to referral care services such as essential and emergency obstetric care, resulting in some of the highest infant and maternal mortality rates in the world. The lack of water and sanitation facilities is a matter for serious concern: less than ten per cent of the rural population is estimated to have access to safe water, resulting in various waterborne diseases.

Liberia is also one of the most food insecure countries in the world, with less than ten per cent of arable land being cultivated. This is attributable to a number of factors, including the continued disruption of agricultural systems due to the displacement of farming communities, limited access to food due to the absence of market mechanisms, high unemployment and lack of economic opportunities, socioeconomic dislocation and the breakdown of family and community coping mechanisms especially among IDPs who have been displaced, in some cases, up to seven times since April 1999. Childhood malnutrition in particular remains high, with 39 per cent of children under five stunted.

The humanitarian situation of IDPs remaining in camps has also continued to be grim. With the official IDP return process expected to end in April 2006, many camps have been closed, the huts demolished and services such as health posts largely reduced. According to some NGOs, the conditions in the remaining camps – including those officially closed but still housing thousands of unregistered IDPs (ie. those without a valid food ration card) – are deplorable. Not only have service providers been pulling out of the camps, partly due to lack of funding, but landowners have in some cases been stripping the camps of water pipes and other infrastructure. Shelters are in a state of collapse, and water and sanitation facilities are seriously lacking. The absence of a clear plan for the consolidation and integration of IDPs who for various reasons do not wish to return has exacerbated the situation. Reasons cited include inadequate return packages and lack of transport, continuing security fears, and lack of infrastructure and services in home areas.



Displaced man in Monrovia,
Liberia, 1995
(Claudia McGoldrick)



Displaced girls at Clay camp, near
Monrovia, Liberia, 1995
(Claudia McGoldrick)

Hopes for improved IDP response

The October 2005 elections provided the first essential step towards restoring Liberia's credibility internationally after years of pariah status. Liberia's international isolation reached its depths during the rule of Charles Taylor who fled into exile in Nigeria in August 2003, but who in March 2006 was finally brought before the UN-backed Special Court in Sierra Leone to face prosecution for war crimes.

A UN sanctions regime, banning the sale or supply of arms, diamonds and timber, as well as travel, was again renewed by the Security Council at the end of 2005, on the basis that the situation in Liberia continued to constitute a threat to international peace and security. At the same time donor support to humanitarian assistance in Liberia has been extremely low – notwithstanding the departure of Charles Taylor in 2003 – largely as a result of rampant corruption within the transitional government.

Donors have therefore been encouraged by the government's endorsement, in September 2005, of the Governance and Economic Management Assistance Programme (GEMAP) that aims to stamp out corruption and achieve financial accountability by placing foreign experts in key administrative positions. The UN also welcomed the adoption of the GEMAP agreement, saying it carried "much promise" in addressing the problems that have in the past hampered donor funding.

The previous National Transitional Government of Liberia did not have the financial or technical resources to fulfil its primary responsibilities for IDP protection and assistance. While hopes may be high that the new government will usher in a new era of positive change, it is clear that at present the national agency responsible for coordinating assistance to IDPs – the Liberia Refugee Repatriation and Resettlement Commission (LRRRC) – continues to be hampered by a serious lack of capacity and resources.

Given the previous transitional government's incapacity, as well as the overwhelming humanitarian needs in Liberia – and within that the magnitude of internal displacement – there has been a relatively huge international presence, bringing with it confusing and sometimes highly divisive coordination mechanisms.

The UN Mission in Liberia (UNMIL) – with almost 15,000 troops one of the largest peacekeeping missions in the world – is headed by a Special Representative of the Secretary-General (SRSG) supported by two deputies who include the Humanitarian Coordinator. A key concern, particularly among international NGOs in Liberia, has been the fact that the SRSG effectively manages not only the Humanitarian Coordinator but also all the UNMIL military contingents, raising fears that humanitarian mandates take second place to political and military ones.

International NGOs in Liberia have consistently voiced concerns that humanitarian coordination particularly of the return process has been politically driven by UNMIL. The UN's desire for a "success story" ahead of October 2005 elections in Liberia, they have claimed, has been the main reason for what they see as a rushed and poorly planned reintegration process. They have argued that the necessary safeguards of voluntariness, the availability of full and objective information, and the declaration of return areas as safe based on an objective assessment, all risked being jeopardised. A dire lack of services as well as continuing protection concerns in areas of return has reportedly resulted in IDPs returning to the camps, or creating new settlements near the capital Monrovia, according to NGOs.

However, the year 2005 also saw some significant changes towards strengthening IDP response at the international level. Humanitarian reform globally resulted in the assignment of clear responsibilities to lead organisations at sector level, with a priority in relation to the protection and care of IDPs. UNHCR agreed to take on sectoral responsibility for camp management, emergency shelter and protection – with Liberia identified as one of three pilot countries for 2006. Although crucial issues remain to be resolved – not least the question of additional funding and resources to allow UNHCR to fulfil its new responsibilities – UN agencies and NGOs in Liberia have generally been very supportive of the new "cluster approach".

A national policy framework – the Results-Focused Transitional Framework (RFTF) – was adopted by the international community and the transitional government in 2004 designed to address all aspects of Liberia's rehabilitation, including IDP and refugee return. At the end of 2004 both humanitarian and targeted transitional needs were integrated into the RFTF Humanitarian Appeal. However, donor reluctance to continue supporting reconstruction activities in view of government corruption – resulting eventually in the endorsement of GEMAP – also threatened the release of funds for urgent humanitarian activities. The UN therefore issued a Consolidated Appeal for 2006, requesting \$121 million to address priority humanitarian needs, which was seen as a more effective way of ensuring sustained donor support. The term of the RFTF is due to end in March 2006, while discussions have been underway on the launch of a Common Country Assessment/UN Development Assistance Framework (CCA/UNDAF) process as well as an interim Poverty Reduction Strategy Paper during 2006.

Pending the full development of the CCA/UNDAF, and with the official return programme of registered IDPs expected to be completed in April 2006, UNDP, UNHCR, UNICEF and WFP have established a Joint Action Plan for Community Based Recovery (2006-2007). This provides a framework for a collaborative response to the reintegration of displaced populations in Liberia – targeting community-based projects aimed at the restoration of basic services, protection, productive livelihoods, shelter and community infrastructures. The Action Plan also supports national institutions to progressively take the lead in directing the recovery process.

Key recommendations to the government:

- Ensure IDP return is in line with the UN Guiding Principles on Internal Displacement, particularly the right to return voluntarily, in safety and dignity
- Develop a clear plan for the consolidation and integration of IDPs who do not wish to return
- Support income-generating activities, including job creation, in return areas to help ensure successful reintegration for both returnees and ex-combatants
- Cooperate fully with the Truth and Reconciliation Commission created to probe human rights abuses from 1979-2003